Exceeding Consideration

Going beyond an existing duty

A student agrees to translate a notice for £30. The client later asks for an additional page and promises £10 more. The extra translation was not included in the original agreement. It can therefore provide consideration for the additional payment.

Now change the facts: the client promises £10 more for exactly the work already agreed. The legal question becomes harder. What, if anything, supports the new promise? This guide introduces the distinction in the law of England and Wales, assuming no previous legal study.

1 Begin with the original duty

Consideration is the legally recognised exchange supporting a promise in an ordinary contract. It can be a promised service, an act or a forbearance. It need not be money, and it need not equal the economic value of the promise received.

An **existing duty** is something a person is already legally required to do. Before assessing a promise of extra payment, identify the source, beneficiary and scope of that duty.

SOURCE OF DUTY	STARTING QUESTION
Public or legal duty	What does the law already require this person or authority to do?
Contract with the person promising more	What performance is already owed under this agreement?
Contract with a third party	Is the duty owed to someone other than the new promisor? Different rules may apply.

2 Additional performance can support a promise

Merely carrying out a public duty ordinarily does not provide consideration for payment for that duty. Likewise, the traditional starting point for a promise to pay more is that doing only what is already owed to that same contracting party supplies no fresh consideration.

However, an undertaking to do something **beyond the existing duty** can supply consideration. The comparison is legal: what was required before, and what additional performance has now been agreed?

3 Use the title carefully

“Exceeding consideration” is the lesson title. A clearer description of the principle is **going beyond an existing duty**. The issue is not that consideration must become more expensive, but that the new bargain receives legally sufficient support.

The existing-duty rule has qualifications. In particular, modern contract cases recognise practical benefits in some promises to pay more. Do not turn the traditional starting point into a rule that an existing obligation can never be relevant consideration.

Police Protection During a Strike

Glasbrook Brothers Ltd v Glamorgan County Council [1925] AC 270
House of Lords | Public duty and additional services

4 What happened?

During a miners' strike, a colliery company wanted police stationed at its premises. The police considered that mobile protection would suffice. The company nevertheless requested a resident garrison; 70 officers were supplied under an agreement to pay. It later refused payment.

5 Who won, and why?

The public authorities won. The House of Lords dismissed the company's appeal by a 3-2 majority. The requested garrison went beyond the protection the police, acting reasonably and in good faith, considered necessary to discharge their public duty. That additional service supported the payment agreement.

6 The boundary of the decision

The number 70 was not a legal threshold. The issue was whether the requested service exceeded the duty. If the garrison had been necessary to fulfil that duty, the authorities could not charge for it on this reasoning. The minority regarded the protection as necessary and would have allowed the appeal.

Read this as a historical public-duty case, not a complete statement of current police charging legislation. Its central question is whether a service is already legally owed or genuinely additional.

7 Practise separating duty from request

ASK	WHY IT MATTERS
What must the authority provide?	Establish the legal baseline before examining the payment promise.
What does the requester additionally want?	A preference for a particular service does not itself prove that it exceeds the duty.
What is the basis for treating it as additional?	Identify the relevant legal duty and the supported factual assessment.

Fictional classroom example: imagine a rule requiring a university office to issue one free certificate. It separately offers an optional translation service, which the rule does not require, for an agreed fee. The translation is a different service from merely issuing the certificate.

Before applying the analogy, check the office's actual obligations and power to charge. Calling something "special" or "extra" cannot by itself remove it from an existing legal duty.

8 A useful sentence for your answer

"The additional service can support the payment promise because it falls outside the existing duty." Follow that sentence with facts identifying the original duty and the additional undertaking.

Sailors and a Dangerous Voyage

Hartley v Ponsonby (1857) 7 E & B 872
Compared with Stilk v Myrick (1809) 2 Camp 317

9 Hartley: the remaining crew were not bound to sail

At Port Philip, 17 of a ship's original 36 crew refused to work and were imprisoned. Only four or five of the 19 remaining were able seamen. The captain promised Hartley £40 extra to help take the ship to Bombay. He performed, but the promised payment was not made.

Hartley won. The court upheld the verdict for him. Continuing with so few hands was dangerous to life: he was not bound by the original agreement to undertake that work. His new undertaking therefore supplied consideration. The jury also found that the captain agreed voluntarily, without coercion.

The important distinction is not simply that the sailor worked harder. The proposed voyage lay outside what he was legally bound to undertake in those conditions. No fixed percentage of missing crew determines the result.

10 Stilk: the work remained within the original duty

In **Stilk v Myrick**, two of 11 sailors deserted. The captain promised the remaining crew the deserters' wages for bringing the ship back to London. **The captain won on the extra-payment claim:** the sailor could recover his original wages, but not the promised increase.

In the reported reasoning, the remaining crew were already bound to deal with the emergencies of the voyage and bring the ship home. Their undertaking supplied no new consideration for that extra promise.

CASE	LEGAL COMPARISON
Stilk v Myrick	Performance remained within the original contractual duty.
Hartley v Ponsonby	The dangerous undertaking was not required by the original duty.

11 A modern qualification: practical benefit

Williams v Roffey Bros [1991] 1 QB 1: a contractor promised a carpenter additional payment to complete existing work. The carpenter succeeded on the disputed entitlement, and the contractor's appeal failed. Practical benefits to the contractor could support the promise even without additional work.

The principle concerns a promise to pay more for work, goods or services where completion is in doubt and the promisor obtains a practical benefit or avoids a disadvantage. Economic duress or fraud must be absent. It does not make every promise to pay more enforceable.

Distinguish two routes: **additional performance beyond a duty**, and **practical benefit from existing performance**. This lesson concentrates on the first.

Apply the Distinction

12 Four steps for a problem question

1. Identify the baseline. What is already legally required, and to whom is it owed?
2. Identify the new bargain. What additional payment or other promise is offered?
3. Compare performance. Is the new undertaking outside the original duty? Explain precisely how.
4. Check other requirements. Consider any relevant practical-benefit argument, improper pressure and applicable formalities. Consideration alone does not resolve every issue.

13 Essential vocabulary

TERM	MEANING IN THIS GUIDE
Existing duty	An obligation already imposed by law or agreement.
Scope	The extent or boundaries of an obligation.
Exceed	Go beyond what the obligation requires.
Garrison / colliery	A stationed body of officers / a coal mine.
Desert / able seaman	Leave service without permission / a qualified category of sailor.
Coercion / economic duress	Pressure or compulsion / legally relevant improper economic pressure.
Enforceable	Capable of being upheld through legal proceedings.

14 Check your understanding

1. Is consideration necessarily money?
2. Why might an additional translation page support an extra fee?
3. Is any police deployment described as “extra” automatically chargeable?
4. Who won Glasbrook and Hartley?
5. Is the difference between the sailor cases merely the number of missing crew?
6. Must every enforceable promise to pay more involve additional work?

Answers: 1. No. 2. It is work outside the original agreement. 3. No; examine the duty and the legal basis for charging. 4. The public authorities won Glasbrook; Hartley won his extra-payment claim. 5. No; compare the scope of the duty, including the danger in Hartley. 6. No; a qualifying practical benefit can be relevant, subject to the applicable rules.

Authorities: Glasbrook, House of Lords judgment; Hartley, reproduced original report; Stilk, reproduced judgment extracts; Williams v Roffey, Court of Appeal judgment.

Adapted from the supplied Exceeding Consideration lesson. Case names and crew details are corrected against the reports; public duties and modern qualifications are clarified. Fictional examples are simplified for learning.